

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #05	CCRB Case #: 201503513	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 05/03/2015 2:05 PM	Location of Incident: Liberty Street and West Street	18 Mo. SOL 11/3/2016	Precinct: 01
Date/Time CV Reported Sun, 05/03/2015 2:16 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 05/03/2015 2:16 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Octavio Green	02713	947047	WTC CMD
2. POM Christophe Giancontieri	07714	949022	WTC CMD

Officer(s)	Allegation	Investigator Recommendation
A . POM Octavio Green	Discourtesy: PO Octavio Green spoke rudely to § 87(2)(b) and individuals.	A . Unsubstantiated
B . POM Octavio Green	Abuse: PO Octavio Green refused to provide his name and shield number to § 87(2)(b)	B . Unsubstantiated
C . POM Christophe Giancontieri	Abuse: PO Christopher Giancontieri refused to provide his name and shield number to § 87(2)(b)	C . Unsubstantiated

Case Summary

On May 3, 2015, § 87(2)(b) was walking near the intersection of Liberty and West Streets in Manhattan when he saw an elderly woman, who appeared to be suffering physically from the effects of hot weather, accompanied by a young male companion. He and several other unidentified civilians helped her into a taxi. Shortly thereafter, PO Octavio Green and PO Christopher Giancontieri, both of the World Trade Center command, ushered the woman and her companion out of the taxi. When § 87(2)(b) and the other civilians asked the officers why they removed the woman from the taxi, PO Green allegedly said, “Go fuck yourselves” (**Allegation A**). After this interaction, § 87(2)(b) followed PO Green and PO Giancontieri back to a security booth at West and Liberty Streets. Through the wall of the booth, he asked for their names and shield numbers, which they allegedly refused to provide (**Allegation B and C**). No arrests were made or summonses issued as a result of this incident (encl. 4C).

Mediation, Civil, and Criminal Histories

- Mediation was offered to § 87(2)(b) during his in-person interview on May 8, 2015. He rejected mediation § 87(2)(b) (encl. 4D).
- On June 25, 2015, a Notice of Claim inquiry was submitted to the comptroller’s office (encl. 9E). The results of this request will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED].

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by or involving § 87(2)(b) (encl. 2C).
- PO Green has been a member of service for 6 years. This is the first CCRB complaint filed against him (encl. 2A).
- PO Giancontieri has been a member of service for 4 years. This is the first CCRB complaint filed against him (encl. 2B).

Potential Issues

§ 87(2)(b) could not provide any names or contact information for the additional victims to the discourteous statements. Additionally, video footage was requested from the Lower Manhattan Security Initiative command, but the footage provided was from the incorrect corner, and therefore did not capture the incident (encl. 9D). Footage from the correct corner was requested, but it had already been deleted (encl. 8D).

Findings and Recommendations

Explanation of Subject Officer Identification

Neither PO Green nor PO Giancontieri recalled speaking to § 87(2)(b) and § 87(2)(b) did not obtain PO Green’s or PO Giancontieri’s names or shield numbers. Sgt. Nelson Fernandez, the assistant ICO at the World Trade Center command, was called, and he identified Foot Posts #10 and #11 as the assignments that correlated to the incident location. PO Green and PO Giancontieri, the officers assigned to these posts (encl. 6C), respectively, matched the pedigree information and officer descriptions that § 87(2)(b) provided. Additionally, during their CCRB interviews, both PO Green and PO Giancontieri stated that there would not have been additional uniformed officers stationed nearby (encl. 5H and 5O).

Allegations Not Pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegation A: PO Octavio Green spoke rudely to § 87(2)(b) and individuals.

Allegation B: PO Octavio Green refused to provide his name and shield number to § 87(2)(b)

Allegation C: PO Christopher Giancontieri refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) testified that when he saw the woman being removed from the taxi, he and several other civilians approached PO Green and PO Giancontieri and asked the officers why they did so (encl. 4C). In response, PO Green told § 87(2)(b) and the other individuals to “go fuck yourselves.” As a result of this statement, § 87(2)(b) attempted to obtain the officers’ names and shield numbers in order to file a complaint against them. He followed them to a security booth, where they had walked, and asked them for their names and shield numbers through the glass. Neither officer acceded to this request (encl. 4C).

Neither PO Green nor PO Giancontieri had any independent recollection of this incident, because they wave on many taxis past this intersection (encl. 5H and 5O). Nevertheless, PO Green directly denied using any profanity during the incident (encl. 5H), and PO Giancontieri denied hearing any discourteous statements (encl. 5O). Both officers stated that they did not provide their names or shield numbers to any civilians on that date because they did not remember being asked for any of this information (encl. 5H and 5O).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. It is therefore recommended that Allegations **A, B, and C** be closed as **unsubstantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date